

CLASSIFICATION OF TRUSTS.

1. **Trusts simple or special.** — The first and natural division of trusts is into *simple* and *special*.

Simple trust. — The *simple* trust is where property is vested in one person *upon trust* for another, and the nature of the trust, not being prescribed by the settlor, is left to the construction of law. In this case the *cestui que trust* has *jus habendi*, or the right to be put into actual possession of the property, and *jus disponendi*, or the right to call upon the trustee to execute conveyances of the legal estate as the *cestui que trust* directs.

Special trust. — The *special* trust is where the machinery of a trustee is introduced for the execution of some purpose particularly pointed out, and the trustee is not, as before, a mere passive depositary of the estate, but is called upon to exert himself actively in the execution of the settlor's intention; as where a conveyance is to trustees upon trust to sell for payment of debts.

2. **Special trusts either instrumental or discretionary.** — Special trusts have again been subdivided into *ministerial* (or *instrumental*) and *discretionary*. The former, such as demand no further exercise of reason or understanding than every intelligent agent must necessarily employ; the latter, such as cannot be duly administered without the application of a certain degree of prudence and judgment.

A trust to convey an estate must be regarded as ministerial; for, provided the estate be vested in the *cestui que trust*, it is perfectly immaterial to him by what manner of person the conveyance is executed.

Trust to sell held by Mr. Fearne to be instrumental. — A trust for sale was considered by Mr. Fearne as also ministerial; "for the price," he said, "is not arbitrary, or at the trustee's discretion, but to the best that can be gotten for the